

26STCV01217 26STCV01217

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Case Number: 26STCV01217 Hearing Date: September 15, 2026 Dept: 836

MOTION FOR APPOINTMENT OF RECEIVER

Date: 9/15/26

(1:30 PM)

Case: Vicky L. Thomas, Trustee of

the Vicky L. Thomas Trust dated February 7, 2007 v. Kassandra M. Carroll, et al. (26STCV01217)

TENTATIVE

RULING:

Plaintiff Vicky L. Thomas' Motion for Appointment of Receiver

(Code Civ. Proc. § 564) to Preserve, Manage, and Sell Real Property Pending Partition is DENIED.

I.

BACKGROUND

The Vicky L. Thomas Trust, dated February 7, 2007 ("Thomas Trust") and the Lawrence E. Stickney Living Trust ("Stickney Trust") each own an undivided fifty percent interest as tenants in common in the property located at 9835-9865 Max Shapiro Way, South El Monte, California 91733 ("Property"), which consists of five stand-alone commercial buildings. (Thomas Decl. ¶¶ 2-3 & Exs. A-B.) The Property is leased to multiple commercial tenants, including tenant Crown Castle. (Thomas Decl. ¶ 4.)

The owners of the Property entered into a Tenancy-in-Common

Agreement on March 4, 1997, wherein they agreed to jointly make decisions concerning the Property's management, leasing, and operation. (Thomas Decl. ¶ 5.) Plaintiff Vicky L. Thomas, Trustee of the Thomas Trust, represents that she and decedent Lawrence E. Tickney cooperated in the joint management of the Property and that the business relationship has since deteriorated with defendant Cassandra M. Carroll, who is now the successor trustee of the Stickney Trust. (Thomas Decl. ¶¶ 6-8.) For example, plaintiff claims that defendant has refused to approve any renewal or extension of the current leases with tenants and that, if such leases are allowed to expire, the resulting vacancies would lead to lost income and a negative impact upon the Property's appraised value. (Thomas Decl. ¶¶ 9-11.) Plaintiff also claims that defendant has interfered with plaintiff's lease renewal efforts with Crown Castle. (Thomas Decl. ¶¶ 12-15.) As for the Property's upkeep and insurance maintenance, plaintiff contends that defendant has not been cooperative. (Thomas Decl. ¶¶ 16-20.) Plaintiff has offered to end the relationship by buying out the Stickney Trust's share, but plaintiff contends that defendant has countered with a purchase amount that is unreasonable. (Thomas Decl. ¶¶ 23-24.)

According to defendant, the Property is financially healthy, as it is generating \$46,015.53 in monthly rental income as of April 2026. (Kalter Decl. ¶¶ 2-3 & Ex. 2.) Defendant further represents that plaintiff undervalued the Property in her current buyout offer because plaintiff had previously claimed that the Property was worth \$11 million on March 17, 2023. (Kalter Decl. ¶¶ 2, 8 & Exs. 1, 6.) With respect to certain contentions by plaintiff about the Property, defendant asserts that Crown Castle's lease has been renewed, that the Property's roofs were repaired in 2024 and have been receiving regular maintenance, and that insurance is up-to-date, with the premiums paid in full. (Kalter Decl. ¶¶ 4-6 & Exs. 3-4.) Defendant also notes that the Property is being managed by a third-party. (Kalter Decl. ¶ 7 & Ex. 5.)

The instant action for partition was initiated by plaintiff on January 14, 2026. On June 8, 2026, plaintiff filed the motion for appointment of receiver. On September 1, 2026, defendant filed an opposition. No reply has been filed.

II.

REQUEST TO APPOINT A RECEIVER

Pursuant to CCP § 564(b)(1)

and (9), plaintiff seeks the appointment of a receiver for the Property to take possession of, manage, and preserve the Property, as well as to sell it when the Property is ready for disposition. (Notice of Mtn. at 2:7-11.)

A. Legal Standard

CCP § 564(b) provides that “a receiver may be appointed by the court in which an action or proceeding is pending, or by a judge thereof, in the following cases: (1) In an action . . . between partners. . . , on the application of the plaintiff, or of any party whose right to or interest in the property or fund, or the proceeds of the property or fund, is probable, and where it is shown that the property or fund is in danger of being lost, removed, or materially injured. . . (9) In all other cases where necessary to preserve the property or rights of any party. . . .”

Appointment of a receiver is a drastic provisional remedy that the court should only grant when facts are presented by admissible evidence that clearly establish a receiver is necessary to protect the property and maintain the status quo. (*Barclay Bank of California v. Superior Court* (“*Barclays*”) (1977) 69 Cal. App. 3d 593, 597; *City and County of San Francisco v. Daley* (1993) 16 Cal.App.4th 734, 744). The appointment of a receiver is an equitable remedy, which should be used only when necessary and where other legal remedies are unavailable. (*Rogers v. Smith* (1946) 76 Cal.App.2d 16, 21).

B. Merits

Based on the record before it, the Court finds that the appointment of a receiver is not warranted because there is no showing that the Property is at risk of being lost or materially injured. As shown by defendant without dispute, the Property is generating sufficient income and has over \$300,000 in capital as of April 2026. (Kalter Decl. ¶ 3 & Ex. 2.) Moreover, as further demonstrated by defendant, several of the plaintiff’s concerns raised in the motion have since been remedied or were not significant issues in the first instance. (Kalter Decl. ¶¶ 4-6 & Ex. 3.) For example, the Crown Castle lease, which plaintiff claims is important to the Property’s financial well-being, has been renewed. (Thomas Decl. ¶¶ 4, 12-15; Kalter Decl. ¶¶ 5-6 & Ex. 4.) Moreover, the Property is currently being managed by a third-party, which has assisted in lease renewals. (Kalter Decl. ¶ 7 & Exs.

3, 5.) There is no showing by plaintiff that the third-party management has been ineffective or that there is any material risk of any other tenant leaving. The Court acknowledges that the parties dispute the value of the Property, but that dispute over value in no way reflects that the Property is in need of the drastic remedy of a receivership to protect the value of the Property, whatever it may be. (See Barclay, 69 Cal. App. 3d at 597.)

For the foregoing reasons, the motion for appointment of a receiver is DENIED. Furthermore, because the request to appoint a receiver is denied, the request for the receiver to sell the property per CCP § 568.5 is DENIED.